

**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

Case No: **2026-086906**

In the matter between:

Afrocentric Investment Corporation Limited
(Reg: 1988/000570/06)

Applicant

and

Wilbur William Matthee

Respondent

SUPPLEMENTARY AFFIDAVIT

I, the undersigned,

LEBOHANG SHADI MATSIPA MPUMLWANA

do hereby make oath and state that:

- 1 I am an adult female employed by Afrocentric Investment Corporation Limited as Group Company Secretary and Legal Counsel. I confirm that I am duly authorised by the applicant to depose hereto on its behalf.
- 2 The facts contained herein fall within my own personal knowledge, save where the context indicates to the contrary, and are true and correct.
- 3 Where I make submissions of a legal nature I do so on the advice of the applicant's attorneys of record, which advice I believe to be correct.
- 4 For the sake of convenience I may also refer to facts which do not fall within my own personal knowledge but which facts shall be confirmed by confirmatory affidavits.

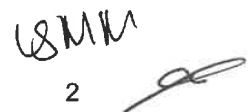


5 The purpose of this affidavit is:

- 5.1 to support the final confirmation of the *rule nisi* granted by the above Honourable Court on 16 April 2026 (the **Order**), in which the applicant seeks to interdict the respondent from carrying out the unlawful threats contained in his emails of 14 and 15 April 2026. A copy of the Order is annexed hereto marked **LM6**;
- 5.2 to supplement the founding affidavit deposed to by Gerald Neville Van Wyk on 16 April 2026 (the **founding affidavit**), as permitted in terms of paragraph 4 of the Order;
- 5.3 to respond to the answering affidavit filed by the respondent on 16 April 2026 (the **answering affidavit**) and the supplementary answering affidavit incorporating a counter-application for declaratory relief filed (prematurely) by the respondent on 20 April 2026 (the **supplementary answering affidavit**); and
- 5.4 to address the respondent's conduct since the granting of the Order, including his demand for discovery, his threat to anticipate the return date, and his premature filing of the supplementary answering affidavit.

Litigation history

- 6 At 22h38 on 14 April 2026, the respondent directed an email to Ms Lebohang Mpulwana, the applicant's Group Company Secretary and Legal Counsel in which he threatened to release into the public domain information held by the applicant that was highly confidential, proprietary

Handwritten signature and initials, possibly 'GMM' or similar, with a flourish.

or otherwise protectable. The respondent afforded the applicant a period of time, until 13h25 on 16 April 2026, to pay him various amounts, including unliquidated "damages" if it wished to prevent the respondent from carrying out his unlawful threats. I am advised that the respondent's conduct amounted to attempted extortion and, as such, it was a criminal offence.

- 7 On 15 April 2026, the applicant's attorneys directed correspondence to the respondent in which he was requested to desist from his threatened course of conduct and to confirm this in writing by 17h00 that day.
- 8 On the same day at 13h19 and 15h43, the respondent directed two further emails to the applicant's attorneys in which he persisted with his extortionate behaviour, now quantifying his demand in an amount of R7,307,642.72.
- 9 The applicant was accordingly left with no option but to approach this court on an extremely urgent basis. The respondent was informed of the application on the evening of 15 April 2026 and served with the papers on the morning of 16 April 2026.
- 10 The Order was granted on 16 April 2026 at approximately 14h00.
- 11 On 16 April 2026, the respondent sent multiple emails to the applicant's attorneys. In those emails, he confirmed that he formally opposed the application, that he had filed a notice of intention to oppose and an answering affidavit, and that he was in transit to attend the hearing. He

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ultimately did not attend the hearing. At no stage did he withdraw his extortionate threats.

- 12 Despite the respondent's claim that he filed a notice of intention to oppose, the applicant's attorneys never received such a notice.
- 13 The respondent served his answering affidavit and, subsequently, his supplementary answering affidavit on the applicant's attorneys by email.
- 14 He purported to "file" these documents by including the Chief Registrar, Ms Nicola Hanekom, as a co-recipient of the email.
- 15 None of the respondent's pleadings have been filed on Court Online since the matter was opened in the afternoon of 16 April 2026.
- 16 The Order was granted in the respondent's absence.
- 17 The respondent had due notice of the application, served papers on the applicant's attorneys by email, and engaged actively with the process by email throughout the morning.
- 18 However, as at the date of this affidavit, none of the respondent's papers have been formally filed with the Court.
- 19 On 20 April 2026, the respondent served by email what he described as a supplementary answering affidavit incorporating a counter-application for declaratory relief.
- 20 That affidavit was accompanied by 22 annexures and a notice of counter-application.

- 21 Once again, the respondent purported to file these documents by copying the Chief Registrar as a co-recipient of the email. A copy of this email is annexed hereto marked **LM7**.
- 22 In the same affidavit, at paragraph 14, the respondent demanded that the applicant produce six categories of documents within five days, failing which he stated he would anticipate the return date and move for the discharge of the *rule nisi*.
- 23 On the same day, the applicant's attorneys responded acknowledging receipt of the respondent's email and attachment thereto.
- 24 On 22 April 2026 at 11h32, the respondent sent an email to the applicant's attorneys entitled "*Formal Notice: Anticipation of Return Day in terms of Uniform Rule 6(8)*" in which he stated his intention to anticipate the return date to 24 April 2026 at 10h00.
- 25 The respondent stated that the applicant's failure to comply with his demand for discovery constituted "*a calculated refusal to engage transparently*" and that he would move for the discharge of the *rule nisi*. A copy of this email is annexed hereto marked **LM8**.
- 26 At 13h37 on the same day, the applicant's attorneys responded, recording that the purported anticipation was premature and procedurally inappropriate for the reasons set out in the letter of 21 April 2026.
- 27 The applicant's attorneys further recorded that the respondent had been informed of the application on the evening of 15 April 2026, had served

papers by email, had confirmed his intention to attend, and had been unable to do so, apparently due to financial hardship – and that the Order was accordingly not granted *ex parte* but in the respondent's absence. The correct remedy, if the respondent wished to challenge the order, was reconsideration under Rule 6(12)(c), not anticipation under Rule 6(8). A copy of this correspondence is annexed hereto marked **LM9**.

28 At 15h03 on 22 April 2026, the respondent sent a further email in which he referred to “two separate clocks” – the timeline for his anticipation in terms of Rule 6(8) and the timetable for filing papers – and insisted that both “run in parallel.” He stated that he intended to proceed with the anticipation hearing. A copy of this email is annexed hereto marked **LM10**.

29 On 23 April 2026 at 10h15, the respondent served on the applicant's attorneys a formal notice to anticipate the return date. At 14h28 on the same day, the respondent served a 160-page bundle entitled “*Notice to Anticipate Return Day*” for hearing on 24 April 2026. The bundle incorporated his supplementary answering affidavit, his counter-application, 22 annexures, an “affidavit of destitution”, and a supporting affidavit.

30 The parties appeared before the Honourable Acting Judge Manca on 24 April 2026 in the urgent Court. The respondent's application to anticipate the return date and set aside the *rule nisi* Order of 16 April 2026 was struck from the roll, with costs to stand over pending the final determination of the *rule nisi*. I have not yet received the issued copy of the Order of Acting Judge Manca.

The respondent's core issues

- 31 Before supplementing the applicant's submissions, addressing the respondent's points *in limine* and his substantive contentions, it is necessary to place the matter in its proper context. The crux of the respondent's complaint – from which everything else has proliferated – is that his salary was reduced in July 2025 because he had exhausted his sick leave and annual leave entitlements.
- 32 The respondent was employed by Medscheme Holdings (Pty) Ltd, a wholly owned subsidiary of the applicant, as a Care Coordinator in the GEMS Active Disease Risk Management (**ADRM**) team from 1 May 2024, reporting to Ms Mary-Ann Jones (Team Leader), Nthabiseng Nkatane (Manager), and Ms Mapule Mashele (Senior Manager).
- 33 On 18 March 2025, as per the respondent's own submissions, the respondent was admitted to Akeso Stepping Stones Clinic for treatment of severe depression and PTSD and was certified as unfit for work. Treatment was extended and involved a further admission to a second facility. The respondent returned to work on 23 June 2025.
- 34 By 24 June 2025, the respondent had been absent from work for a total of 67 days in 13 months. His sick leave and annual leave entitlements had been exhausted. Management met with the respondent to discuss Medscheme's absence management policy and the consequences of continued absence, including the application of unpaid leave.

35 On 14 July 2025, the respondent's request for special leave was approved for 10 days. The remaining days of absence were recorded as unpaid leave in accordance with Medscheme's "no-work, no-pay" policy. The respondent's salary was accordingly reduced in July 2025.

36 There was nothing unlawful about this reduction. It was the natural consequence of the respondent having exhausted all of his leave entitlements. I am advised that in such circumstances, the employer is entitled to apply the principle of no work, no pay.

37 It was this salary reduction that triggered the respondent's grievance, his CCMA referral on 5 December 2025, and ultimately his resignation on 12 December 2025.

38 I am advised that the issues that the respondent now raises in his answering papers fall within the jurisdiction of in the Labour Court and include the following:

38.1 The "Wilma" incident

38.1.1 On approximately 23 September 2025, the respondent's team leader, Mary-Ann Jones, typed "Wilma" instead of "Wilbur" in a team Microsoft Teams chat. The respondent initially laughed the incident off. The following day, however, he raised a formal complaint.

38.1.2 Ms Mashele convened a meeting with both parties. Ms Jones confirmed it was a typographical error and apologised. The

respondent accepted the apology, confirmed that he did not have a problem with Ms Jones, and elected to remain in her team.

38.1.3 On 1 October 2025, Ms Mashele circulated an email confirming that the matter was resolved, which sentiment was echoed by the respondent in a subsequent email on the same day. A copy of the respondent's email correspondence is annexed hereto marked **LM11**.

38.1.4 The respondent now characterises this incident as gender identity discrimination – a matter which, even on his own version, was resolved internally and is now part of his Labour Court claim.

38.2 Job title dispute

38.2.1 The respondent complains that he was recruited for a “*Specialist Care Manager*” position but appointed as a “*Care Coordinator*.” The position of Care Coordinator was the correct designation at the time of his appointment on 1 May 2024, as confirmed by his signed employment contract. A naming convention process was underway within the organisation to align legacy titles, but it had not been implemented for the respondent's department at the time of his departure. His Certificate of Service correctly reflects his contractual designation. This dispute is a matter for the Labour Court.

38.3 UI-19 and UIF contributions

38.3.1 The respondent demands a corrected UI-19 form. The respondent resigned voluntarily on 12 December 2025. In the absence of a finding of constructive dismissal by the CCMA or the Labour Court, issuing a UI-19 reflecting anything other than a voluntary resignation would be unlawful. This too is a matter squarely before the Labour Court.

39 None of these issues has any bearing on whether the respondent should be restrained from disclosing confidential information, publishing defamatory statements, or demanding payment by threats. Regardless of the merits of any of his employment-related complaints against Medscheme, the respondent is not entitled to attempt to extort money from the applicant.

40 They are nothing more than a “red herring”, raised in an attempt to divert attention from the true issue – being the respondent’s extortionate conduct.

Requirements for final interdicts

41 I am advised that an applicant for confirmation of a *rule nisi* must demonstrate to the Court that:

41.1 It has a clear right to the relief sought;

41.2 There must be an injury actually committed or reasonably apprehended;
and

41.3 There is no other satisfactory remedy available.

42 I address each of these in turn below.

A clear right

43 First and foremost, the applicant has a right not be subjected to unlawful attempts to extort money from it. The reason why the respondent has threatened to embark on his course of conduct (which is the subject matter of the interdict) is to procure the payment of R7,3 million to which he has no lawful entitlement. This is clear from the respondent's emails GVW1 read with GVW4. Under these circumstances, I am advised that it is irrelevant whether his threatened conduct, in the absence of a demand for payment, might otherwise be lawful. (For the reasons set out below, the threatened conduct is unlawful in its own right, but this is not a necessary finding in order to grant the relief sought.) The applicant has a clear right to interdict the commission of a crime against it.

44 In any event, the applicant has a clear right to protect its reputation, its proprietary information, its confidential business relationships, and the personal information of its clients' beneficiaries. These rights are recognised at common law and are reinforced by the *Protection of Personal Information Act, 2013 (POPIA)*.

45 The respondent's threatened conduct constitutes unlawful conduct *per se*. If he was permitted to carry them out, it would infringe the applicant's rights. In summary:

45.1 Firstly, the information that the respondent threatens to disclose is confidential and proprietary and the applicant is entitled to its protection from public distribution. In certain respects, it concerns the confidential information of the applicant's clients and individual medical scheme members. I shall demonstrate further below that, notwithstanding what the respondent states, the information that he threatens to release is *not* already in the public domain.

45.2 Secondly, the threatened disclosures do not qualify for protection under the *Protected Disclosures Act, 2000 (PDA)*. I shall demonstrate further below why the threatened disclosures do not fall within the PDA.

45.3 Thirdly, the respondent is not permitted to defame or to issue malicious statements regarding the applicant, its directors, officers, employees, auditors or regulatory bodies. I shall set out below why the respondent's threats are defamatory and malicious.

46 I accordingly submit that the applicant has established a clear right to the relief granted in the Order and that the Order should be made final as a result.

Injury actually committed or reasonably apprehended

47 The respondent has not withdrawn his threats. He continues to threaten the applicant with disclosure, public statements, and regulatory complaints. In his supplementary answering affidavit, the respondent threatened to, and then did anticipate the return date, when his demand for discovery of irrelevant documents was not met. His counter-application

seeks declaratory orders that would, in effect, legitimise the very conduct which the interdict application seeks to restrain.

- 48 The Mahlangu RCA and “forensic payload” contain the personal and special personal information of a GEMS beneficiary. The public release of such information would constitute a contravention of POPIA and would cause irreparable harm to the applicant’s relationship with GEMS and its standing as a trusted medical scheme administrator.
- 49 The applicant is a company listed with the Johannesburg Stock Exchange (JSE). The respondent’s threatened statements could cause serious harm to the applicant’s share price, investor confidence, and commercial reputation.
- 50 Medscheme is in the process of renegotiating contracts and renewals with some of its largest clients. The threatened disclosures could jeopardise these contractual relationships and cause significant commercial harm.
- 51 Accordingly, the applicant would suffer irreparable harm in the event that the interim order is not made final.

No alternative remedy

- 52 The applicant has no alternative remedy.
- 53 The cease-and-desist letter of 15 April 2026 was ignored. The respondent’s response to the letter was to issue a further demand for R7,307,642.72.

54 The Labour Court proceedings do not provide an alternative remedy for the relief sought in these proceedings. The Labour Court has jurisdiction over employment disputes. It does not have jurisdiction to interdict a former employee (employed by one of the applicant's subsidiaries) from disclosing confidential information to trade unions, publishing defamatory statements, or demanding payment by threats.

55 The respondent's employment disputes are before the Labour Court, where the applicant's subsidiaries will defend the claims and seek their dismissal.

56 Those proceedings do not afford the applicant protection against the immediate harm threatened by the respondent.

Balance of convenience and interests of justice

57 In light of the above, insofar as may be relevant at the stage of final relief, the balance of convenience overwhelmingly favours confirmation of the interdict.

58 If confirmed, the respondent suffers no prejudice to any legitimate right.

58.1 He remains free to pursue his Labour Court claims, and to co-operate with regulatory bodies. The interdict does not silence him – it restrains only his threatened unlawful conduct.

58.2 Nor will the threatened conduct advance the respondent's financial position. The applicant will not pay the respondent any sum of money in response to threats. Whatever financial relief the respondent may be

entitled to can only be obtained through the Labour Court, where his claims will be adjudicated on their merits.

58.3 The threatened disclosures will cause harm to the applicant but will not remedy the respondent's grievances or improve his financial circumstances. He suffers no financial prejudice from the confirmation of the interdict.

59 On the other hand, if the interdict is not confirmed, the consequences for the applicant are severe and irreversible.

59.1 Once confidential information is disclosed, it cannot be recalled. Once defamatory statements are published, the reputational harm cannot be undone. Once the applicant's share price is affected by misleading public statements, the commercial damage is done.

59.2 The respondent's conduct since the Order – demanding discovery to which he is not entitled, threatening and following through on anticipating the return date, filing premature and irregular papers, and bringing a counter-application to legitimise the restrained conduct – demonstrates that he will not exercise restraint voluntarily.

60 The interests of justice do not permit a former employee to leverage the disclosure of confidential information and threats of reputational harm to extract a financial payment from his former employer's holding company – and to characterise that conduct as whistleblowing.



61 The respondent has access to the Labour Court and has already approached eleven regulatory bodies. Every lawful avenue remains open to him.

62 I am advised that further submissions will be made in argument.

The respondent's claims are already before the Labour Court

63 Before turning to an *ad seriatim* response to the respondent's answering and supplementary answering affidavits, it should be noted that the respondent's answering papers predominantly seek to ventilate matters that are currently before the Labour Court.

64 The respondent has referred two disputes to the CCMA, both of which have proceeded to the Labour Court:

64.1 Case WECT23564-25: Unfair Labour Practice – unlawful salary deduction, discrimination, and victimisation; and

64.2 Case WECT24486-25: Automatically Unfair Constructive Dismissal – retaliation for protected disclosures.

65 On 9 April 2026, the respondent filed a Statement of Claim in the Labour Court (Case No. 2026-083299), in which he claims, *inter alia*:

65.1 Automatically unfair constructive dismissal under sections 186(1)(e) and 187(1)(h) of the *Labour Relations Act, 1995 (LRA)* – alleging that the dominant reason for his dismissal was retaliation for protected disclosures;



- 65.2 Alternative claim for automatically unfair dismissal under sections 186(1)(e) and 187(1)(f) of the LRA – alleging disability-related discrimination;
- 65.3 Unfair discrimination and harassment under sections 6(1), 6(3) and 60 of the *Employment Equity Act, 1998 (EEA)* – on the grounds of sexual orientation, gender identity and disability;
- 65.4 Occupational detriment for making protected disclosures under sections 3 and 4 of the PDA;
- 65.5 Contravention of section 34(2) of the *Basic Conditions of Employment Act, 1997 (BCEA)* – unlawful salary deduction;
- 65.6 Contravention of section 42 of the BCEA – failure to provide a true and accurate Certificate of Service; and
- 65.7 Contravention of section 5(1) of the *Unemployment Insurance Contributions Act, 2002* – failure to declare UIF contributions for June 2025.
- 66 A further BCEA claim was filed on 2 April 2026 as Case No. 2026-077546.
- 67 The applicant submits that the very same allegations which the respondent raises in his answering papers and counter-application – including the salary deduction, the job title dispute, the alleged discrimination, the UIF non-compliance, the Certificate of Service, and the alleged retaliation for protected disclosures – are squarely before the Labour Court.

68 This Court is not the appropriate forum in which to determine those disputes. They are raised in these proceedings not because they are relevant to the interdict, but in an attempt to obscure the true issue before the court, which is whether the respondent should be restrained from carrying out threats of unlawful conduct.

Ad seriatim response to the respondent's answering and supplementary answering affidavits

69 The respondent served his supplementary answering affidavit by email on 20 April 2026 – before the applicant had filed its supplementary founding affidavit, and before the time period for the respondent's answering affidavit had begun to run. The service was premature and irregular.

70 The applicant invited the respondent, by letter dated 21 April 2026, to withdraw the supplementary answering affidavit. The respondent has not done so. The applicant accordingly proceeds on the basis that the respondent's supplementary answering affidavit is an irregular step and reserves its rights to address this procedural irregularity at the hearing.

71 Nevertheless, I have read both the respondent's answering affidavit and supplementary answering affidavit in full and will respond to both affidavits *ad seriatim*. Save where expressly admitted herein, the contents thereof are denied.

72 I do not propose to respond to each and every allegation made by the respondent. Many of his allegations are irrelevant to the relief sought in

these proceedings. I confine myself to those matters which are material to the issues before this Honourable Court.

The respondent's answering affidavit

Ad paragraph 1

73 It is denied that the applicant's papers were served on the respondent at 21:42 on 15 April 2026. The applicant emailed the respondent at approximately 21:42 on 15 April 2026 to notify him that it intended to launch an urgent application the following day and that it would serve its papers on the respondent the following morning.

74 The applicant served its urgent application for a rule nisi on the respondent at approximately 08h53 on 16 April 2026, this being the earliest opportunity that the application could be served on the respondent.

Ad paragraph 2

75 Save to deny that the content of the answering affidavit is true and correct, the contents herein are noted.

Ad paragraph 3

76 The content herein is noted.

Ad paragraph 4

77 Save to deny that the respondent has grounds to oppose the applicant's application, the content herein is noted.



Ad paragraph 5

78 The respondent's claims of "public" disclosure

78.1 The respondent contends that the information he threatens to disclose is already within the public domain as it is contained in his Statement of Claim in the Labour Court and his Section 162 Application in the High Court, and that one cannot interdict the disclosure of information that is already "public" under the principle of open justice.

78.2 This submission is without merit for the following reasons:

78.2.1 The filing of documents in court proceedings does not render their contents "public" in the sense that any person is free to disseminate them to trade unions, regulators, the media, and other third parties for the purpose of causing reputational harm or extracting payment. I am advised that this is unlawful and amounts to extortion. The attachment of confidential information to the respondent's Labour Court pleadings – including confidential information about members of medical aid schemes serviced by Medscheme – was unlawful and a breach of POPIA. The respondent now seeks this court's imprimatur to broaden the scope of his unlawful conduct.

78.2.2 Thus far, the information released by the respondent into the public domain through his other court proceedings has been limited to a number of emails between himself and other members of the respondent's staff. However, *ex facie* the




respondent's email of 14 April 2026, he intends to go much further, namely that he will release a "forensic payload" as well as evidence of an allegedly suppressed information concerning the decision by GEMS to implement a 9.5% premium increase.

78.2.3 Whilst employed by the applicant, the respondent had access to vast amounts of data which could conceivably and reasonably be taken to fall within the aforesaid 'categories' of disclosure. This information is confidential, proprietary and concerns the personal information of GEMS members. The respondent has no lawful reason to release this information into the public domain.

78.2.4 To the extent that the respondent does not currently hold information beyond what is annexed to his other court papers, he is invited to state as such under oath. In any event, he has nothing to fear from being restrained in respect of information he does not hold.

78.2.5 I stress that the interdict does not restrain the respondent from participating in any court proceedings, whether before this court or the Labour Court. It restrains him from a specific set of threatened acts – namely, disclosing confidential information to trade unions, publishing defamatory statements, filing misleading complaints with regulatory bodies, demanding payment by threats, and inciting trade union action against the



applicant. The respondent remains free to prosecute his Labour Court claims with full vigour.

79 Self-created urgency

79.1 The respondent contends that the applicant was aware of his “*forensic findings*” since October 2025 and that the urgency is self-created. This is denied.

79.2 The urgent application was prompted by the respondent’s emails of 14 and 15 April 2026, in which he issued an ultimatum with a deadline of 13h24 on 16 April 2026, threatening immediate action if his demand for R7,3 million was not met.

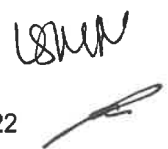
79.3 The respondent himself created the urgency by setting an imminent deadline and threatening immediate, irreversible conduct.

79.4 In any event, the objection to urgency is now moot.

80 Improper service

80.1 The respondent contends that the application papers were served on him at 08:53 on 16 April 2026 for a hearing at 10:00 the same day, affording him only 67 minutes to respond, and that the *rule nisi* should be discharged on this ground alone.

80.2 The respondent’s characterisation of the service is incomplete. On the evening of 15 April 2026, the applicant’s attorneys informed the respondent of the application and that he would be served with the papers



the following morning. He was duly served on the morning of 16 April 2026.

The respondent thereafter served an answering affidavit on the applicant's attorneys by email, sent multiple emails requesting that his correspondence be placed before the presiding judge, and confirmed that he was in transit to attend the hearing.

80.3 The respondent was not taken by surprise. The urgency of the application was not created by the applicant – it arose from the deadlines imposed by the respondent in his own emails of 14 and 15 April 2026, in which he threatened to carry out his stated actions by 13h24 on 16 April 2026.

80.4 Further, and in order to ameliorate any prejudice to the respondent, paragraph 7 of the Order provides that the respondent may anticipate the return date on 24 hours' notice.

80.5 Finally, I point out that paragraph 1 of the Order grants the applicant condonation in respect of the timing and manner of service of the application.

Ad paragraphs 6 – 10

81 The content herein is denied.

82 I am advised that the common law crime of extortion is committed when a person unlawfully and intentionally seeks to obtain an advantage, which may be of either a patrimonial or a non-patrimonial nature, from another by subjecting the latter to pressure which induces her to hand over the advantage. The essence of the offence is the use of coercive threats – not

whether the demand is quantified or itemised. Even a demand which otherwise might be regarded as lawful will amount to extortion if it constitutes a quid pro quo for the performance of another act.

83 In the respondent's emails of 14 and 15 April 2026, he issued an ultimatum to the applicant, threatening to disclose information (among other threats), conditional upon the applicant entering into a "settlement" with him on or before 13h24 on 16 April 2026.

84 When the applicant noted that the "settlement" amount demanded was unquantified, the respondent quantified his claim in sum of R7,307,642.72 and indicated that "*the Board must ratify the following quantified schedule by the aforementioned deadline*" (own emphasis) and provided two "scenarios" in which either he meets with union officials to announce his victory or he proceeds with his "*full forensic disclosure*".

85 I am advised that the respondent has thus made a demand for payment of a patrimonial advantage under threat to cause harm to the applicant, with the intention of inducing the applicant to capitulate to his demands. This is, without question, attempted extortion.

86 That the respondent has quantified the amount he demands has no bearing on the matter. Extortion pertains to both patrimonial or non-patrimonial advantages and is, in fact, more stereotypically known as a demand for a certain amount of money. An extortionist who provides an itemised invoice is no less an extortionist.



- 87 I am advised that there is a distinction between asserting a legal right (which is lawful) and threatening to cause unlawful harm (which is not). A party pursuing a legitimate claim may make a demand in strong terms, such as to make payment of money allegedly owed under threat of instituting a legal suit for such payment, without committing extortion, because the threatened consequence (litigation) is lawful.
- 88 The respondent's assertion that the R7,3 million is simply his prayed-for relief in his pre-existing Labour Court litigation is denied. The respondent did not simply inform the applicant of a quantified legal claim and invite settlement discussions. He threatened to cause immediate, specified, and irreversible harm to the applicant's reputation, its relationships with trade unions, and its standing with regulators unless paid before an urgent deadline entirely unrelated to his proceedings before the Labour Court.
- 89 I am advised that the respondent's reliance on the forcefulness of his language as a product of "genuine distress and occupational injury" does not avail him. Distress may explain motive, but it does not excuse the commission of a crime. The elements of extortion are objective: a demand for an advantage, by application of pressure, unlawfully and intentionally. I submit that all four elements are present on the respondent's own version of events.

Ad paragraphs 11 – 14

- 90 The content herein is denied.



91 In order to adequately respond to the respondent's submissions, it is necessary to provide some background into the "*Mahlangu RCA*".

91.1 The "*Mahlangu RCA*" pertains to a root cause analysis (**RCA**) prepared in respect of complaint pertaining to a 75-year-old GEMS beneficiary who received a "non-adherence communication" (explained below), which the respondent contends was generated by a system integration error between the Gexus and DMS platforms operated by Medscheme.

91.2 The Mahlangu complaint arose in the ordinary course of the ADRM team's work. The ADRM team's function is to ensure that GEMS members who are approved for chronic medication collect that medication regularly.

91.3 When a member fails to claim chronic medication twice in a rolling three-month period, the DMS system automatically generates a non-adherence communication which is sent to the member, and a Care Coordinator is assigned to follow up.

91.4 In the case of Mahlangu, the system generated a non-adherence letter because the member had failed to claim chronic medication on two occasions in a three-month period. The complaint was assigned to the respondent for follow-up.

91.5 The respondent formed the view that that the non-adherence letter was erroneously generated because the DMS system had not recognised a change in the member's medication benefit category from acute to chronic.

91.6 However, management's internal review found that this analysis was wrong. The DMS and Gexus systems were aligned. The member's chronic medication claims had been reflected on both systems from April 2023 – not from January 2025, as the respondent contended. The DMS system does not monitor acute medication; it only monitors chronic medication adherence. The non-adherence communication was correctly triggered by the member's claiming pattern.

91.7 The respondent's team leader, Ms Jones, noted the respondent's analysis but did not agree with his findings. The matter was reassigned to another team member, who contacted the member and enrolled her on the DMS system for ongoing monitoring and education on the importance of monthly medication claims.

91.8 The Deputy Information Officer of Medscheme was consulted regarding the Mahlangu RCA and confirmed that no IT incident had been reported in respect of the Gexus/DMS systems, nor any systemic integration failure of the kind alleged by the respondent.

91.9 The respondent's characterisation of the Mahlangu RCA as evidence of a "*systemic integration failure*" affecting all 1.9 million GEMS beneficiaries is, with respect, risible.

91.10 It was a routine member complaint in which the respondent's own analysis was found to be inaccurate by his management. The respondent has extrapolated from a single member complaint a theory of systemic failure that is contradicted by the internal evidence.



- 92 I am advised that the respondent has already breached the confidentiality of the Mahlangu member's personal information by annexing the Mahlangu RCA correspondence – including the member's name, GEMS membership number, age, and medication details – to his answering papers, his supplementary answering affidavit, his Labour Court Statement of Claim, and his anticipation application.
- 93 In doing so, the respondent has disclosed the special personal information of a GEMS beneficiary in multiple court filings. This is itself a breach of POPIA and of the respondent's ongoing duty of confidentiality under clause 13 of his employment contract, which expressly prohibits the disclosure of confidential information including *"data and/or other information regarding any medical scheme, member or dependent of a medical scheme."*
- 94 Regardless of whether the respondent agrees with the findings of the Mahlangu RCA, the respondent does not have the right to distribute internal investigation reports containing the personal and special personal information of a GEMS beneficiary to trade unions, the media, and third parties for the purpose of extracting payment or embarrassing the applicant.
- 95 If the respondent has concerns about the integrity of Medscheme's systems, the appropriate course is to raise those concerns through the regulatory channels – which, as set out above, he has already done – or through the Labour Court, where his claims are pending. He does not have the right to take the law into his own hands.



96 As I have noted above, it is unclear what information pertaining to the Mahlangu RCA the respondent intends to release. He describes it as a "forensic payload" which it is reasonable to assume goes far beyond the information that has been published to date and may well include other information that is confidential or proprietary. I point out that the respondent seems to suggest that the problem identified in the Mahlangu matter is a general problem that extends across the entire claims monitoring system and which led to an R180 million loss to the applicant. It is thus eminently probable that the threatened disclosure will involve a much larger category of information.

Ad paragraphs 15 – 17

97 The content herein is denied.

98 The respondent withdrew a central allegation upon which his demand and threatened disclosures were predicated. This is an admission that the factual basis for his threats was inaccurate at the time those threats were made. Despite this, the respondent maintained both his threats and demand, demonstrating that his true objective was payment, not disclosure in the public interest.

Ad paragraphs 18 – 20

99 The content herein is denied.

100 The respondent contends that his threatened conduct constitutes protected disclosures within the meaning of the *Protected Disclosures Act, 2000* (**PDA**). I am advised that this submission is incorrect.

101 I am advised that the PDA defines “employee” to include any person who “works or worked” for another person and who “receives or received” remuneration. The applicant accepts, for purposes of these proceedings, that the respondent falls within this definition.

102 The PDA does not, however, protect all disclosures. A “disclosure” is defined in section 1 as a disclosure of information regarding any conduct of an employer, made by an employee or worker who has reason to believe that the information shows or tends to show one or more of seven listed categories, including:

102.1 that a criminal offence has been committed;

102.2 that a person has failed to comply with a legal obligation;

102.3 that a miscarriage of justice has occurred;

102.4 that the health or safety of an individual has been endangered;

102.5 that the environment has been, is being or is likely to be damaged;

102.6 unfair discrimination as contemplated under the EEA or the Promotion of Equality and Prevention of Unfair Discrimination Act, 2000; or

102.7 that any such matter has been deliberately concealed.




- 103 Only a disclosure falling within this definition may qualify as a “*protected disclosure*” under the PDA.
- 104 The PDA prescribes five categories of recipient to whom a protected disclosure may be made, including an employer (section 6), a member of Cabinet or Executive Council (section 7), certain prescribed persons or bodies such as the Public Protector or the South African Human Rights Commission (**SAHRC**) (section 8), or any other person or body under the general disclosure provision (section 9).
- 105 The respondent's threatened disclosures – to trade unions, the media, and the general public – do not fall within sections 5 to 8. They can only be assessed under section 9, the general disclosure provision, which imposes the most stringent requirements. The respondent goes no way towards meeting these requirements.
- 106 A requirement that runs through the PDA like a thread is that of good faith. The respondent does not meet this requirement, since his threat of disclosure is linked to a demand for payment. If he receives payment, he will not make the threatened disclosure. A disclosure that is conditional upon not receiving payment does not meet the requirement of good faith.
- 107 I am advised that, under section 9(1)(a), the employee must reasonably believe that the information disclosed is “*substantially true*.” Under section 9(1)(b), the employee must “*not make the disclosure for purposes of personal gain, excluding any reward payable in terms of any law*.” In addition, the disclosure must, in all the circumstances, be reasonable –

with regard to whether the disclosure is made in breach of a duty of confidentiality of the employer towards any other person.

108 I am further advised that section 9B of the PDA creates a criminal offence where an employee, who intentionally discloses false information – knowing it to be false or who ought reasonably to have known it to be false – with the intention to cause harm to the affected party, and where the affected party has suffered harm as a result, is guilty of an offence punishable by a fine or imprisonment for up to two years, or both.

109 On the respondent's own submissions, the Whistleblower House (**WBH**) – an organisation established to assist whistleblowers – declined the respondent's application on 2 March 2026, following a preliminary legal opinion from Schroter Attorneys that the respondent does not qualify for PDA protection and that the constructive dismissal threshold was not met.

110 Against this framework, the respondent's conduct fails every material requirement.

110.1 First, the disclosures are made for personal gain. A disclosure conditional upon payment of R7,3 million is, on its face, a disclosure for personal gain. It is excluded from protection by the express terms of the Act.

110.2 Second, the respondent cannot satisfy the requirement of reasonable belief. As set out above, the factual premise of his disclosures is demonstrably inaccurate: management found his analysis wrong, the DMS and Gexus systems were aligned, and his "*Governance Tax*" theory is speculative and unsupported by actuarial evidence. The respondent knew

or ought to have known his findings were inaccurate – his team leader rejected his analysis and he was informed of this.

110.3 Third, the respondent's "*disclosures*" are not disclosures at all – they are threats. He does not simply report improper conduct to a regulatory body. He threatens to release a "forensic payload" to trade unions, publish a "*Whistleblower's Manifesto*" naming directors and regulators, and file JSE and CIPC complaints for "*Material Non-Disclosure and Market Deception*" – all unless he is paid. This is not whistleblowing. It is extortion.

110.4 Fourth, the respondent has already disclosed to every conceivable regulatory body, including the Council for Medical Schemes (**CMS**), the Health Professions Council of South Africa (**HPCSA**), the South African Nursing Council (**SANC**), the South African Pharmacy Council (**SAPC**), SAHRC, JSE, Department of Employment and Labour (**DEL**), B-BBEE Commission, the South African Police Services (**SAPS**), the Department of Health (**DOH**), and the WBH.

110.5 The interdict does not prevent him from pursuing those complaints. It restrains the conditional distribution of confidential patient information to trade unions, the threatened public campaign, and the extortionate demand for payment. The PDA does not protect such conduct.

111 These submissions will be addressed further in argument.

Ad paragraphs 21 – 25

112 The content herein is denied.





- 113 The respondent repeatedly refers to a 9.5% premium increase for GEMS members and attributes this to what he calls a “*Governance Tax*” arising from the alleged Gexus/DMS integration gap. He alleges that this so-called “integration failure” generates false non-adherence data, compelling actuaries to apply “maximum APN 303 risk loading”, inflating the GEMS premium increase from 3.3 – 4% to 9.5%, at an estimated excess cost of R3.016 billion per annum.
- 114 The 9.5% premium increase is a GEMS premium increase imposed on its members and is entirely unrelated to the operations of Medscheme and AfroCentric. GEMS is an independent medical scheme governed by its own Board of Trustees. Neither Medscheme (as administrator) nor AfroCentric (as the listed holding company) has the power to determine or influence GEMS premium levels.
- 115 The Mahlangu complaint has no connection whatsoever to the 9.5% premium increase. A premium increase is the product of a complex actuarial process involving multiple factors and would not result from a single software integration error at the scheme’s administrator relating to one member’s medication adherence.
- 116 The respondent’s alleged theory is speculative, unsupported by any actuarial evidence, and based on the respondent’s own inaccurate analysis of the Mahlangu complaint.
- 117 Medscheme has no control over GEMS premium increases and is not in a position to give input on the actuarial basis for the increase, as that is a

matter for GEMS and its actuaries. What Medscheme can confirm is that there is no connection between the Mahlangu complaint and the premium increase.

118 Accordingly, there is no public interest in the respondent's disclosure of his convoluted theories. The only possible gain he could hope to achieve is to harm the reputation and business of the applicant.

Ad prayers 1 – 5

119 The content herein is denied.

120 It is denied that the respondent's disclosures would be protected disclosures under the PDA, the *Nursing Act, 2005* or the *Health Professions Act, 1974*.

121 It is denied that the respondent is entitled to costs. The urgency of the application was a consequence of the respondent's own deadline.

The respondent's supplementary answering affidavit

Ad paragraphs 1.1 – 1.3

122 Save to deny that the content of the answering affidavit is true and correct, the contents herein are noted.

Ad paragraphs 2.2 – 2.3

123 Save to deny that the content herein bears any relevance on the application, the content herein is noted.

Ad paragraph 2.4

124 The content herein is denied.

125 It is denied that the applicant has displayed any bad faith or has sworn to falsehoods under oath. Nevertheless, the pleadings before the CCMA referenced by the respondent pertain to an unrelated labour dispute and have no bearing on the current proceedings.

Ad paragraph 3.1

126 The content herein is denied and has been addressed in greater detail above at paragraphs 79 – 80.

Ad paragraph 3A.1

127 The content herein is denied.

128 The respondent contends that the applicant has access to internal disciplinary mechanisms, the CCMA, and the Labour Court, and that these constitute adequate alternative remedies.

129 This submission is misconceived. The applicant does not seek to discipline the respondent – he is no longer an employee. The applicant does not seek to resolve an employment dispute.

130 The applicant seeks to restrain the respondent from carrying out threats of unlawful conduct which, if carried out, will cause irreparable harm. An interdict is the only appropriate remedy for that purpose.

131 Neither the CCMA nor the Labour Court has the power to grant an interdict restraining a former employee from disclosing confidential information, making defamatory public statements, or demanding payment by threats.

Ad paragraph 4.1 – 4.4

132 The content herein is denied and has been addressed in greater detail above at paragraphs 82 – 89.

Ad paragraphs 5.1 – 5.3

133 The content herein is denied and has been addressed in greater detail above at paragraphs 97 – 98.

Ad paragraphs 6.1 – 6.5

134 Save to deny that the content herein bears any relevance on the application, the content herein is noted.

Ad paragraph 7.1

135 The content herein is noted.

Ad paragraph 7.2

136 The content herein is denied.

137 I submit that the respondent is a vexatious litigant. The respondent has two pending applications at the Labour Court, launched an urgent application to this court (struck with costs for lack of urgency), attempted to anticipate the return date of the current application (struck from the roll

with costs to stand over for final determination), and filed reports/claims with no less than eleven regulatory bodies / governmental departments.

Ad paragraphs 8.1 – 8.3

138 The content herein is denied.

139 It is denied that the applicant breached the confidentiality of the respondent.

140 It is denied that the respondent's tone has been necessary or proportionate and it is submitted that he did threaten an unlawful act, being the disclosure of information protected under POPIA and which does not fall under the protection of the PDA.

Ad paragraphs 9.1 – 9.2

141 The content herein is denied and has been addressed in greater detail above at paragraphs 112 – 118.

142 It is denied that the applicant has proven any so-called "*systemic integration gap*" in Medscheme's Gexus and DMS platforms or that there is any connection between the operation of such platforms and the premiums of its client, GEMS.

Ad paragraph 10.1

143 The content herein is denied and has been addressed in greater detail above at paragraphs 92 – 94.



144 I am advised that section 9 of POPIA requires that personal information must be processed lawfully and in a reasonable manner which does not infringe on the privacy of the data subject. I am further advised that POPIA places stringent limitations on the processing (which includes the dissemination of) personal information.

145 I am advised that POPIA defines "*personal information*" as information relating to an identifiable, living, natural person, and where it is applicable, an identifiable, existing juristic person, including, but not limited to:

145.1 information relating to the race, gender, sex, pregnancy, marital status, national, ethnic or social origin, colour, sexual orientation, age, physical or mental health, well-being, disability, religion, conscience, belief, culture, language and birth of the person;

145.2 information relating to the education or the medical, financial, criminal or employment history of the person;

145.3 any identifying number, symbol, e-mail address, physical address, telephone number, location information, online identifier or other particular assignment to the person; and

145.4 correspondence sent by the person that is implicitly or explicitly of a private or confidential nature or further correspondence that would reveal the contents of the original correspondence.

146 I am advised that POPIA defines "*special personal information*" as including information concerning the health of the relevant data subject.

147 The Mahlangu RCA contains correspondence, which includes the member's name, GEMS membership number, age, and medication details. This information falls squarely within the ambit of personal and even that of special personal information in terms of POPIA.

148 Accordingly, any such disclosure of such information would be in breach of the provisions of POPIA and would certainly not be for a lawful purpose.

Ad paragraphs 11.1 – 11.2

149 Save to deny that the content herein bears any relevance on the application, the content herein is noted.

150 It is denied that the respondent's claim of R7,3 million is in any way reasonable or proportionate or that the *Protected Disclosures Bill, 2026* has any bearing thereon.

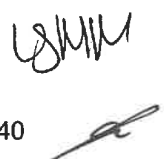
Ad paragraphs 12.1 – 12.2

151 The content herein is denied.

152 As previously submitted, it is denied that any such "*systemic Gexus/DMS integration gap*" exists and thus, it is denied that there could be any impact to the *National Health Insurance Act, 2023* and the respondent is put to proof thereof.

Ad paragraphs 12.3 – 12.4

153 The content herein is denied.



154 The respondent asserts that he is duty bound to report and escalate his allegations as a registered nurse and places considerable emphasis on his various regulatory complaints as evidence of good faith and public interest.

155 The respondent, by his own admission, has already filed complaints with the following bodies:

155.1 Council for Medical Schemes (**CMS**): The CMS acknowledged his complaint but declined jurisdiction, noting that it does not regulate complaints against health professionals, and referred the matter to the HPCSA.

155.2 Health Professions Council of South Africa (**HPCSA**): The HPCSA stated that it has no jurisdiction over nurses and referred the respondent to the SANC.

155.3 South African Nursing Council (**SANC**): The respondent indicated that he had not received a response from the SANC.

155.4 South African Pharmacy Council (**SAPC**): A formal complaint was submitted and the respondent indicated that no substantive response has been received.

155.5 South African Human Rights Commission (**SAHRC**): The SAHRC acknowledged the seriousness of the respondent's concerns, but stated that it was not best placed to provide direct intervention, and suggested that the respondent refer the matter to the CCMA, Labour Court, Public Protector, and/or the Department of Employment and Labour.

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155.6 JSE Issuer Regulation Division: The JSE acknowledged receipt of the respondent's 325-page evidentiary bundle but indicated to the respondent that the matters fall outside the JSE Listings Requirements and referred the respondent to the CCMA, Labour Court, and Equality Court.

155.7 Department of Employment and Labour (**DEL**): The DEL allocated an integrated inspection but advised that it does not have jurisdiction over dismissal issues and referred the respondent to the CCMA.

155.8 B-BBEE Commission: The respondent submitted that case no. 5/02/2026 was allocated for an investigation following the respondent's complaint.

155.9 South African Police Service (**SAPS**): The respondent submitted that a criminal case (CAS 705/3/2026) was registered at SAPS Delft and transferred to SAPS Woodstock for investigation of alleged statutory fraud under the Unemployment Insurance Contributions Act.

155.10 The Whistleblower House (**WBH**): The respondent indicated that the WBH declined his application, noting that he does not meet eligibility criteria, following a preliminary legal opinion from Schroter Attorneys that the respondent does not qualify for PDA protection and the constructive dismissal threshold was not met.

155.11 Minister of Health / Department of Health (**DOH**): The respondent contacted the department of health following SANC's failure to respond to him.



156 Accordingly, the respondent has already reported his allegations to virtually every conceivable regulatory body. The interdict does not seek to punish the respondent or prevent him from making *bona fide* disclosures to regulatory bodies in the ordinary course. It simply restrains the threatened disclosure of information paired with an extortionate demand for payment.

157 Nevertheless, it should be noted that the regulatory bodies to which the respondent has complained have either declined jurisdiction, referred him elsewhere, or have not acted on his complaints. Not a single regulatory body has made a finding in the respondent's favour.

158 The respondent now seeks to bypass the regulatory and judicial processes and to take matters into his own hands by threatening the applicant with public disclosure unless he is paid R7,3 million.

Ad paragraph 13

159 Save to note that the PDA does include former employees within the definition of an "employee", the content herein is denied.

Ad paragraph 14.1 – 14.8

160 The content herein is denied.

161 The respondent demands that the applicant produce six categories of documents within five days of receipt of his supplementary answering affidavit.



162 I am advised that this demand is inappropriate for the following reasons:

162.1 None of the documents demanded are referred to in the applicant's founding affidavit, and they are accordingly not discoverable under Rule 35(12).

162.2 The respondent has not obtained a court direction for discovery under Rule 35(13).

162.3 Several of the documents demanded (the UI-19, Certificate of Service, and UIF contributions) pertain to matters before the Labour Court and bear no relevance to these proceedings.

162.4 The GEMS CMS Business Plan and APN 303 actuarial logs are the proprietary information of GEMS and Medscheme, are not known to the applicant and, if such documents exist, they would be irrelevant to the current proceedings.

163 I am advised that the respondent has no basis on which to demand discovery on a deadline of 5 days or that failure to comply with such a demand would result in the Court drawing an adverse inference against the applicant.

164 It is denied that the applicant is suppressing any evidence. The applicant has made no allegation of insubordination against the respondent.

165 The applicants attempt to anticipate the return date was struck from the roll. The right to anticipate a return date is not contingent on the discovery

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of documents to which the respondent has no legal basis to demand and which are entirely irrelevant to the current proceedings.

Ad paragraph 15.1

166 The content herein is denied.

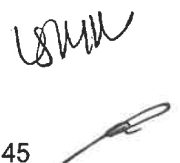
167 It is denied that the applicant deliberately downgraded the respondent's job title to diminish his credibility.

168 The applicant's founding affidavit erroneously stated at paragraph 13.4 that the respondent acted as a "case manager" when dealing with the clinical claims of GEMS members.

169 Given the respondent's extremely short deadline, the founding affidavit was hastily drafted by the applicant's attorneys and the title 'case manager' was incorrectly included in the draft as a result of it being the respondent's job title in his email signature. However, the respondent edited his own email signature to reflect this position – his job title was never changed on any company records, which at all times recorded his position as that of a "Care Co-ordinator".

170 This is supported by the email correspondence annexed to the respondent's supplementary answering affidavit as **EXIT3**.

171 It is also denied that the applicant places any reliance on the respondent's job title at all in seeking to interdict him from carrying out his threatened conduct. His job title is entirely irrelevant to this application.



Ad paragraphs 16.1 – 16.2

172 The content herein is denied.

173 It is denied that the applicant lacked urgency and refers to its submissions at paragraphs 66 – 72 of the founding affidavit.

Ad paragraphs 17.1 – R.7 (the respondent's counter-application)

174 The content herein is denied.

175 The respondent has brought a counter-application for seven declaratory orders, including declarations that his disclosures constitute protected disclosures, that his voluntary corrections are evidence of good faith, that his quantification does not constitute extortion, and that the applicant must comply with his demand for discovery.

175.1 Point in limine: The identity of the respondent's employer

175.1.1 Several of the declaratory orders sought are matters that are already before the Labour Court and pertain to the respondent's allegations against his former employer, Medscheme.

175.1.2 The respondent has referred disputes concerning his employment, his salary deduction, his alleged constructive dismissal, and his alleged occupational detriment to the Labour Court. He cannot now ask this court to make findings on those same matters by way of a counter-application in interdict




proceedings – and against an entity which is not party to these proceedings.

175.1.3 The applicant in these proceedings is Afrocentric Investment Corporation Limited, the listed holding company of the AfroCentric Group. AfroCentric Investment Corporation Limited is a JSE-listed holding company, which holds AfroCentric Health (RF) (Pty) Ltd as a subsidiary. Medscheme Holdings (Pty) Ltd is in turn a subsidiary of AfroCentric Health. A copy of the group structure chart is annexed hereto marked **LM12**.

175.1.4 The unsigned letter of appointment annexed to the respondent's supplementary answering affidavit, was issued by AfroCentric Health (RF) (Pty) Ltd. However, the respondent's actual original signed letter of appointment, dated 22 April 2024, records the respondent's employer as Medscheme. A copy is annexed hereto marked **LM13**.

175.1.5 The respondent's own payslip for July 2025 records his employer as "Medscheme Holdings (Pty) Ltd" and his payroll as "Medscheme Holdings (Permanent)." A copy of the payslip is annexed hereto marked **LM14**.

175.1.6 The UI-19 form issued to the respondent likewise records Medscheme Holdings (Pty) Ltd as the employer. A copy of the UI-19 is annexed hereto marked **LM15**.

175.1.7 The respondent cannot seek employment-related relief against an entity that was not his employer, whether in the form of his counter-application for declaratory orders or otherwise.

176 I am advised that the respondent's authorities do not support his assertions and are potentially hallucinations of an AI drafting tool. Whilst I am advised that the case of *Minister of Health v New Clicks SA (Pty) Ltd* 2006 (2) SA 311 (CC) does exist, it does not contain any reference to the inclusion of a counter-application in an answering affidavit.

177 Furthermore, the case reference to "*Eastern Cape High Court, Bhisho (Case No. 148/2020)*" is incomplete and I am advised it potentially refers to eviction proceedings. Regardless, it has no relevance to the current matter.

178 I am advised that the respondent's counter-application is further misconceived as the respondent relies on the doctrine of *causa continentia* to argue that this court should determine all aspects of the dispute because the applicant "deliberately elected" to bring the application in the High Court. This reliance is misplaced.

179 The applicant brought these proceedings in the High Court because the relief sought – an interdict restraining threatened unlawful conduct – is within the inherent jurisdiction of the High Court. That does not confer jurisdiction on this court to determine employment disputes that the Labour Court has exclusive jurisdiction to adjudicate under section 157(1) of the LRA.

180 The declaratory relief sought requires the determination of disputed facts that cannot be resolved on the papers in motion proceedings. The question whether the respondent's disclosures were made in good faith, whether his quantification constitutes extortion, and whether the applicant acted in bad faith are all matters involving disputes of fact that are properly determined in a trial or in Labour Court proceedings with oral evidence – not in motion proceedings before this court.

181 It is further denied that the declaratory relief sought will grant the respondent access to UIF benefits, which cannot be claimed on resignation.

182 I am advised that further submissions will be made in argument.

Ad paragraphs S.1 – S.5

183 It is denied that the respondent has demonstrated that he is entitled to any of the relief sought herein.

184 I am advised that further submissions will be made in argument.

Costs

185 The applicant seeks costs on the attorney-and-client scale.

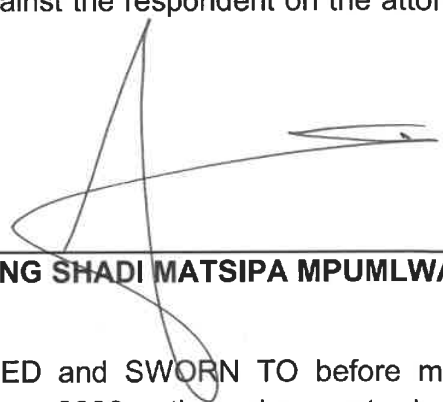
186 The respondent's conduct – the extortionate demands, the premature and irregular filing of papers, the demand for discovery outside of the Rules, the threatened and enacted anticipation of the return date, and the

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counter-application for declaratory relief in proceedings where such relief is neither appropriate nor competent – justifies a punitive costs order.

Conclusion

187 Under all the circumstances, the applicant seeks confirmation of the *rule nisi*, including an order for costs against the respondent on the attorney-and-client scale.



LEBOHANG SHADI MATSIPA MPUMLWANA

I CERTIFY that this affidavit was SIGNED and SWORN TO before me at SANDTON on this the day of 4 MAY 2026, the deponent having acknowledged that she knows and understands the contents of this Affidavit, she has no objection to taking the prescribed oath and considers it binding on her conscience.



COMMISSIONER OF OATHS

**CASSIDY SHANNON COCHRANE WOOD
EX OFFICIO
COMMISSIONER OF OATHS
PRACTISING ATTORNEY
REPUBLIC OF SOUTH AFRICA
11 ALICE LANE
SANDTON**

LM6

IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

Honourable Acting Justice Mphego

Given on this 16th day of April 2026

2026-086906
Case No: 160/2026

In the matter between:

AfroCentric Investment Corporation Limited

Applicant

and

Wilbur William Matthee

Respondent

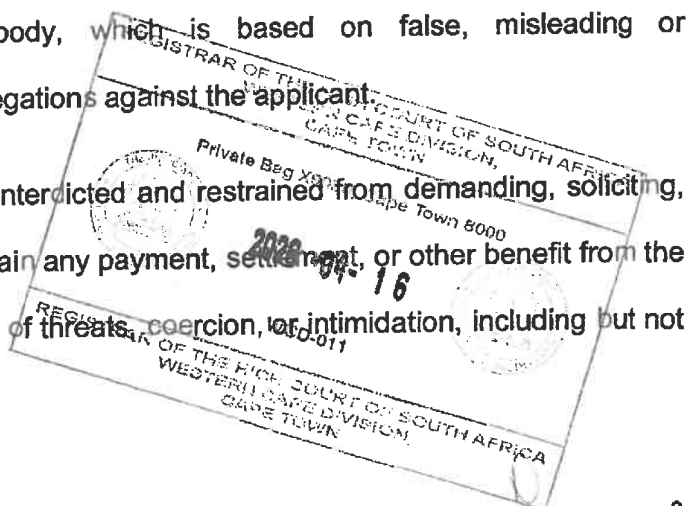
DRAFT ORDER

After having heard counsel for the applicant and having considered the matter, it is ordered that:

- 1 The provisions of the rules relating to time periods, forms and manner of service referred to therein are dispensed with and any non-compliance with such provisions is condoned, and the matter is dealt with as one of urgency in terms of Rule 6(12).
- 2 A *rule nisi* is issued calling upon the respondent to show cause on **28 May 2026** why a final order should not be made in the following terms:
 - 2.1 The respondent is interdicted and restrained from disclosing, disseminating, publishing, or communicating to any third party, including but not limited to the Public Servants Association of South Africa (PSA), the National Education Health and Allied Workers Union (NEHAWU), the Democratic Nursing Organisation of South Africa (DENOSA), the Police

and Prisons Civil Rights Union (POPCRU), the Federation of Unions of South Africa (FEDUSA), or any other trade union, any confidential, proprietary, or commercially sensitive information belonging to the applicant or any of its subsidiaries, including any document referred to as the "Mahlangu Root Cause Analysis" or "Mahlangu RCA", or any information relating to the applicant's internal systems, clinical processes, financial affairs, or integration architecture.

- 2.2 The respondent is interdicted and restrained from making, publishing, or causing to be published any defamatory, false, or malicious statements concerning the applicant, its directors, officers, employees, auditors, or any regulatory bodies, including but not limited to any statement referred to as a "Whistleblower's Manifesto" or any public statement alleging fraud, market deception, misconduct, or impropriety on the part of the applicant or any person associated with it.
- 2.3 The respondent is interdicted and restrained from filing, or causing to be filed, any complaint, report, or submission with the Johannesburg Stock Exchange (JSE), the Companies and Intellectual Property Commission (CIPC), the Independent Regulatory Board for Auditors (IRBA), or any other regulatory body, which is based on false, misleading or unsubstantiated allegations against the applicant.
- 2.4 The respondent is interdicted and restrained from demanding, soliciting, or attempting to obtain any payment, settlement, or other benefit from the applicant by means of threats, coercion, or intimidation, including but not



limited to any demand made conditional upon the non-disclosure of information or the cessation of legal proceedings.

2.5 The respondent is 2.22.4interdicted and restrained from contacting, communicating with, or convening any meeting with any trade union, labour federation, or employee representative body for the purpose of inciting, encouraging, or coordinating any action against the applicant, including but not limited to any application for a High Court interdict, the freezing of premium payments, or any collective action relating to the applicant's affairs.

2.6 The respondent is to pay the costs of this application.

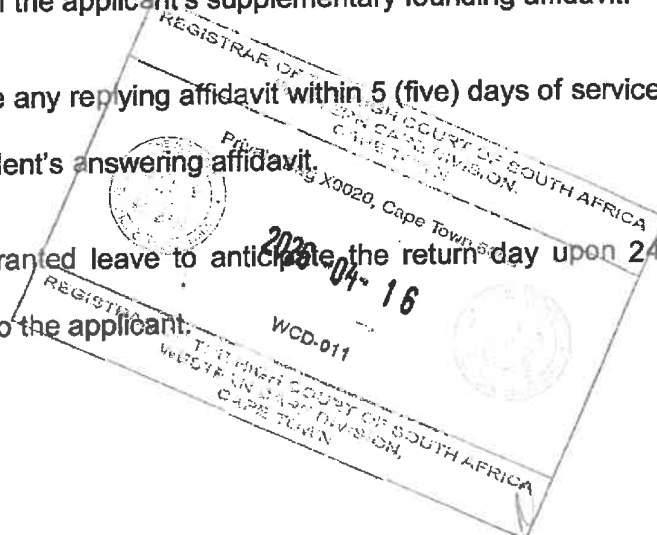
3 The orders per paragraphs 2.1 to 2.6 shall operate as interim orders with immediate effect pending the return date of the *rule nisi*.

4 The applicant is granted leave to supplement its founding affidavit within 10 (ten) days of the date of this order.

5 The respondent is to file any answering affidavit within 15 (fifteen) days of service upon him of the applicant's supplementary founding affidavit.

6 The applicant is to file any replying affidavit within 5 (five) days of service upon it of the respondent's answering affidavit.

7 The respondent is granted leave to anticipate the return day upon 24 hours' written notice to the applicant.



WJW

- 8 Service of this order is to be effected on the respondent by email to info@ethichawks.co.za.

BY ORDER OF THE COURT

COURT REGISTRAR

Deneys

Per: Jason J Whyte

(Ref: AFR1282 / J Whyte)

Tel: 021 405 1208

Email: Jason.Whyte@deneys.co.za



LSM

Frances Barker

From: Wilbur William Matthee <wilburmat@gmail.com>
Sent: 20 April 2026 11:55
To: nhanekom@judiciary.org.za
Cc: Jason Whyte; Frances Barker; Olebogeng Motlhaping
Subject: Case No. 2026-086906 – AfroCentric Investment Corporation Limited v Wilbur William Matthee – Filing of Supplementary Answering Affidavit, Notice of Counter-Application, and Request to Enroll
Attachments: fin_sup_aff_ind_ann_v6.PDF

To:
 The Registrar, High Court of South Africa, Western Cape Division
 [Registrar email address]

Cc:
 Jason Whyte (Deneys Attorneys) – jason.whyte@deneys.co.za
 Frances Barker / Olebogeng Motlhaping (as copied in annexures) – [email addresses if available]

Subject: Case No. 2026-086906 – AfroCentric Investment Corporation Limited v Wilbur William Matthee – Filing of Supplementary Answering Affidavit, Notice of Counter-Application, and Request to Enroll

Dear Honourable Registrar,

I refer to the above matter and write in my capacity as the Respondent, acting in person.

1. Filing of Supplementary Answering Affidavit and Counter-Application

Pursuant to Uniform Rule 6(5)(e) and the practice confirmed in Minister of Health v New Clicks SA (Pty) Ltd 2006 (2) SA 311 (CC), I hereby file the following documents with this Honourable Court:

- Supplementary Answering Affidavit (Final Consolidated) – responding to the Applicant’s founding papers and incorporating a counter-application for declaratory relief;
- Notice of Counter-Application for Declaratory Relief – which is unconditional and will proceed independently even if the Applicant withdraws its main application;
- Index of Annexures containing 22 supporting exhibits as referenced in the affidavit.

These documents are served simultaneously on the Applicant’s attorneys, Deneys.

2. Request to Enroll Counter-Application with Main Application

I respectfully request that the counter-application be enrolled for hearing simultaneously with the main application under the same case number, or on such other date as this Honourable Court may determine. In the event the main application is withdrawn, I request that the counter-application proceed on its own.

The declaratory relief sought is not abstract or hypothetical – it will:



- Break the administrative deadlock with the Department of Employment and Labour regarding my UIF benefits;
- Establish facts binding on the Labour Court through res judicata and estoppel;
- Vindicate my good faith and professional reputation, which the Applicant has attacked under oath.

3. Service on the Applicant's Attorneys

A copy of this email and all filed papers is served on Deneys Attorneys at the email address above.

4. Request for Acknowledgment

Kindly acknowledge receipt of these filings and confirm the date on which the consolidated matter (main application + counter-application) will be placed on the roll.

I remain destitute, self-represented, and without income. My full circumstances are set out in Annexure WW6 (Affidavit of Destitution) filed herewith.

If your client fails to produce the documents by the above deadline without a valid, sworn explanation (e.g., legal privilege or impossibility), I will, without further notice, immediately file a notice to anticipate the return day in terms of:

- Uniform Rule of Court 6(8); and
- Paragraph 7 of the interim order dated 16 April 2026, which expressly grants me leave to anticipate the return day upon 24 hours' written notice to the applicant.

Upon anticipation, I will move for an order:

- Discharging the rule nisi and setting aside the interim interdict in its entirety;
- Granting the declaratory relief sought in my counter-application;
- Awarding a punitive costs order against your client on the scale as between attorney and client.

Your client has until Friday close of business to comply. Failure to do so will result in immediate court action.

Thank you for your assistance.

IMPORTANT NOTICE REGARDING MY EMAIL ADDRESS

Please be advised that my email address info@ethichawks.co.za has been suspended and is no longer active. All formal correspondence, including the documents demanded below, must be sent to my alternative email address:

wilburmat@gmail.com

I confirm that I will monitor this address for your response. Any correspondence sent to the suspended EthicHawks address will not be received.

Yours Professionally,

Wilbur William Matthee
Respondent (acting in person)



15 Bellevue Street, Voorbrug, Cape Town, 7001
Email: wilburmat@gmail.com
Mobile: 069 635 1435

Copy to: Jason Whyte, Deneys Attorneys (via email)

Ethics Hawks promotes ethical leadership, governance integrity, and psychosocial safety in organisations. This correspondence may contain confidential or legally relevant information intended only for the recipient. Unauthorised use or disclosure is prohibited.

WJH


Frances Barker

From: Wilbur Matthee <info@ethichawks.co.za>
Sent: 22 April 2026 11:32
To: Jason Whyte
Cc: Frances Barker; Olebogeng Motlhaping
Subject: FORMAL NOTICE: ANTICIPATION OF RETURN DAY IN TERMS OF UNIFORM RULE 6(8)— MATTHEE V AFROCENTRIC CASE NO. 2026-086906

Importance: High

TO: Jason Whyte/Legal Council

1. Your communication of 20 April 2026 is noted. Continued silence during a documented humanitarian crisis confirms a bad-faith reliance on procedural stalling.
2. Notice is hereby given of the intention to anticipate the return day under Uniform Rule 6(8).
3. Filing will occur on Thursday for a hearing on Friday, 24 April 2026.
4. The Court will be moved to distinguish between the Applicant's self-created urgency and the Respondent's substantive imminent danger.
5. The attempt to utilize the public holiday weekend as a procedural vacuum is neutralized.
6. I see you in court on Friday. Ensure the requested forensic documentation is produced.

Sr. Wilbur W Matthee
Specialist Registered Nurse | PGDip HSM (NQF 8)
Founder — EthicHawks Forensic Governance & Compliance

WMM


Frances Barker

From: Jason Whyte
Sent: 22 April 2026 13:37
To: Wilbur Matthee
Cc: Frances Barker; Olebogeng Motlhaping
Subject: RE: FORMAL NOTICE: ANTICIPATION OF RETURN DAY IN TERMS OF UNIFORM RULE 6(8)— MATTHEE V AFROCENTRIC CASE NO. 2026-086906 [IMAN-CPT_MATTERS.FID2264505]

Importance: High

Dear Mr Matthee

We confirm receipt of your email sent at 11h32 today, 22 April 2026.

We draw your attention to paragraph 14.1 of your supplementary answering affidavit (which we point out was served on 20 April 2026) in which you state:

"I hereby formally invite and put the Applicant on notice to produce the following documents within 5 (five) days of service of this affidavit" (your own emphasis).

And in paragraph 14.3 you state:

"If the Applicant fails to comply without a valid legal basis, I will file a notice to anticipate the return day ..."

Accordingly, on your own terms, our client has until close of business on 28 April 2026 to elect whether it is able to accede to your demand regarding discovery. Our client is considering its response to you in accordance with this deadline.

You now appear to distance yourself from the representation made to our client under oath. Notwithstanding our client's views regarding the demand for discovery, your conduct now amounts to an abuse of court process and is vexatious in the extreme. Should you proceed to have the return date set down as threatened for Friday, 24 April 2026, we shall request the Judge presiding to adjourn the matter until 28 May 2026 and that you be ordered to pay our client's wasted costs on the attorney-client scale.

Kindly be guided accordingly.

Kind regards

Jason Whyte | Director
jason.whyte@deney.co.za

Deneys Cape Town, South Africa
9th floor, 117 on Strand, 117 Strand Street, Cape Town 8001, South Africa
Tel: +27 21 405 1208 | Mobile: +27 83 236 3059



As the world moves
deneys.co.za

We are a proudly BEE Level 1 Law Firm

Advisory: If our bank account details change, we will notify you by phone or in person, but never by email. Please always verify any change in our banking details by oral communication. Be

Frances Barker

From: Wilbur Matthee <info@ethichawks.co.za>
Sent: 22 April 2026 15:03
To: Jason Whyte
Cc: Frances Barker; Olebogeng Motlhaping
Subject: RE: Notice to Anticipate Return Day — Case No: 2026-086906

Importance: High

Mr. Whyte,

1. Your characterization of the Respondent's conduct as "vexatious" is noted and rejected.
2. Your attempt to conflate a discovery deadline with a Rule 6(8) anticipation is a fundamental legal error. There are currently two distinct "clocks" governing this matter, and they operate on separate tracks:
 - (a). The Discovery Clock: The 5-day invitation for document production pertains to the Merits of the case. It is a timeline for trial preparation.
 - (b). The Emergency Clock: The Notice to Anticipate under Uniform Rule 6(8) pertains to the Interim Status of the case. It is a timeline for Survival.
3. The "Discovery Clock" does not—and cannot—arrest the "Emergency Clock." A procedural invitation for discovery is not a waiver of the statutory right to seek immediate judicial relief from an interim order that facilitates a humanitarian crisis. The Respondent's right to dignity, access to water, and survival is not subject to your client's administrative convenience or a 5-day election period.
4. The Applicant's claim of "extreme urgency" to obtain the ex parte order on 16 April is now in direct conflict with your current request for a delay. This contradiction confirms that the Applicant's "urgency" was a tactical label, whereas the Respondent's urgency—documented by 48 hours without food and a lack of basic utilities—is a substantive, physical reality.
5. Be advised that the strategy of "litigation attrition"—including the obstruction of statutory benefits and the resulting state of destitution—is now a matter of record. Your threats of punitive costs against a respondent in a state of documented imminent danger further evidence the Applicant's bad faith and will be placed before the court.
6. The Respondent will not be intimidated into a monthly adjournment while in a state of constitutional emergency. The hearing proceeds on Friday, 24 April 2026. The High Court will be moved to weigh your client's desire for corporate secrecy against the Respondent's right to exist.
7. The "5-day deadline" for documents remains an active forensic demand. If the Applicant chooses to withhold those documents on Friday while maintaining a gag order, you do so at the risk of an adverse judicial inference.

Kindly be guided accordingly.

Sr. Wilbur W Matthee
 Specialist Registered Nurse
 Respondent in Person



LM11
13/4/2026-11:58:23 AM

Fw: Follow-Up on Formal Complaint and Meeting Outcome

2 messages

Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
To: wilburmat@gmail.com <wilburmat@gmail.com>

Fri, 05 Dec 2025 at 17:53

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If you would prefer, the disclaimer can be emailed to you by clicking:
mailto:Meds_disclaimer@medscheme.co.za.



—— Forwarded message ——

From: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
To: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>, Thando Mandondo <ThandoM@medscheme.co.za>, Tebogo Dikobe <Tebogo.Dikobe@afrocentrichealth.com>, Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>
Cc: Nthabiseng Nkatane <nthabisengn@medscheme.co.za>, Mapule Mashele <Mapule.Mashele@medscheme.co.za>
Bcc:

Date: Wed, 1 Oct 2025 11:09:00 +0200
Subject: Follow-Up on Formal Complaint and Meeting Outcome

Dear [Chery-DI/Team/Investigation Team],

I would like to provide a formal update following my meeting with the investigation officer, Senior Manager Ms. Mapule Mashele.

During our discussion, we acknowledged that while errors can occur, there are also instances where actions are deliberate. After reviewing all relevant evidence and context, we navigated toward the latter and reached a shared understanding of the seriousness of the incident.

As a constructive step forward, I have decided to speak directly with Mary-Ann in the presence of Ms. Mashele to express how the situation truly affected me and to seek a way to make amends.

I would like to sincerely thank the team for your swift response to my formal complaint, and for the support, professionalism, and guidance you provided throughout the reporting process.

Kind regards,

LM11
13/4/2026-11:58:23 AM



Sr. Wilbur W. Matthee

(Nurse Specialist PGrad HSM, Btech Gen Pn (Midw, Psych, Comm))

Care coordinator: GEMS Active Disease Risk Management

- +27 12 466 1332
- wilbur.matthee@medscheme.co.za
- The Boulevard Building F & G, Searle street, Woodstock, 7925
- www.medscheme.com



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Follow-Up on Formal Complaint and Meeting Outcome.eml
52 KB

Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
To: Wilbur William Matthee <wilburmat@gmail.com>

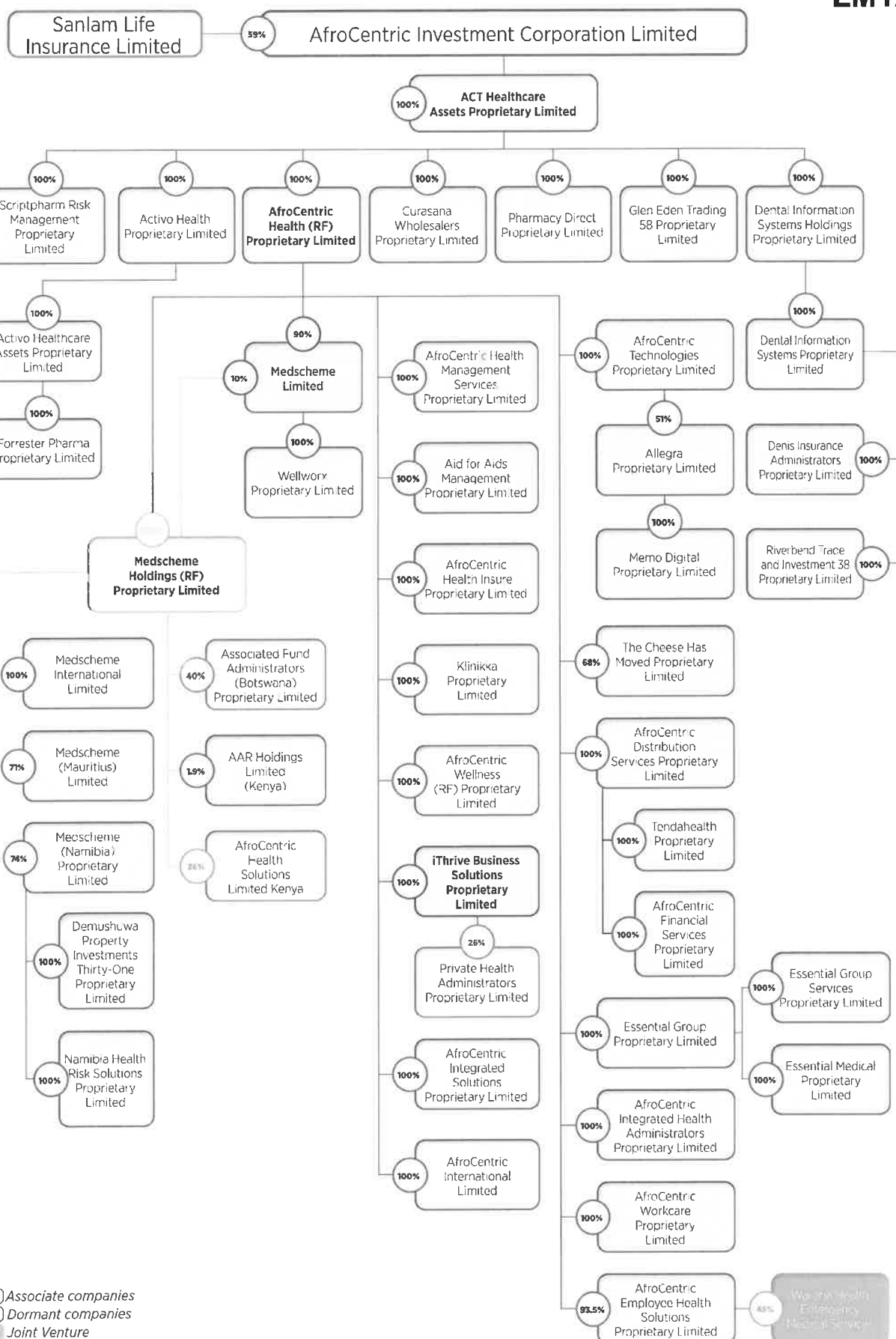
Sat, 06 Dec 2025 at 22:01

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mailto:Meds_disclaimer@medscheme.co.za.

WMM
A handwritten signature in black ink, appearing to be "WMM" with a flourish underneath.





22 April 2024

W Matthee

Dear Wilbur,

LETTER OF APPOINTMENT: Care Coordinator

We are pleased to offer you the position of Care Coordinator (Reference IRC78739) within **Medscheme Holdings (Pty) Ltd** which is a wholly owned subsidiary of AfroCentric Health (RF) (Pty) Ltd and forms part of AfroCentric Group with effect from 01 May 2024. This position is situated in Cape Town.

The key elements of your duties and responsibilities will be as discussed with you and may be revised from time to time thereafter.

CONDITIONS OF EMPLOYMENT

1. PROBATION

At commencement of your employment, you will be required to serve a probationary period of **six (6) continuous months**. From time to time during your probation, your performance and suitability for continued employment shall be evaluated. The Company shall, where appropriate and taking into account your seniority, skills and experience, give you whatever training, guidance or counselling that you may require to render a satisfactory service.

On satisfactory completion of your probation period, you will be deemed to have been accepted as a permanent employee.

Should your performance not be in line with the expected Performance Objectives (these are required standards of performance for your position as communicated formally or informally to you from time to time), the Company reserves the right to terminate your employment in accordance with the Company's Performance Management Policy.

During your probationary period, **one (1) week's written notice of termination of employment** will be required from either party in terms of the Basic Conditions of Employment Act 75 of 1997.

www.afrocentric.za.com

AfroCentric Investment Corporation Limited Reg #1988/000570/06
T +27 11 671 2000
PO Box 1101, Florida Glen 1708 | 37 Conrad Street | Florida North | Roodepoort 1709

DIRECTORS:

Dr ATM Mokgokong (Chairman), MJ Madungandaba (Deputy Chairman), GN Van Wyk (CEO), JW Boonzaaier (CFO), WH Britz, M Chauke, MK Dippenaar, JB Fernandes, PB Hanratty, AM le Roux, KN Mkhize, Dr ND Munisi

Group Company Secretary: LSM Mpumlwana

W.M

EG

W.M

2. REMUNERATION

The Company's remuneration practice is that of a total cost to company package to give you flexibility and choices.

We are pleased to advise you that your total package on a cost to company basis will be **R490,032.00 per annum**, payable by bank transfer into your Bank account.

The above cost to company figure includes all your contributions towards Medical Aid, Pension / Provident Fund, Group Life Assurance and Disability Assurance. If you are required to use your cell phone for business purposes, this will be deemed to be part of your cost to company package.

The Grade for your position based on our Grading Model is that of **B4M1**.

3. RETIREMENT FUNDING INCOME

A percentage between **78** and **90** (78 / 80 / 85 / 90) of your total cost to company figure, as selected by yourself, will constitute your "**Retirement Funding Income**". All contributions, both employer and employee, to the Pension / Provident Fund, Medical Aid Fund, Group Risk Benefits such as Life and Disability Schemes will be based on this figure..

4. TRAVEL ALLOWANCE

Travel allowances will only be offered to employees who can justify for tax purposes the use of a motor vehicle for business travel. As an employer we have to take into account the nature of your duties when permitting this structuring option. The amount allowed as a travel allowance will be based on the value of your motor vehicle and other factors stipulated in relevant legislation. Such requests will have to be signed off by management and it is your responsibility to justify the travel allowance to the South African Revenue Services. Should your role no longer warrant a travel allowance, such allowance will no longer be available.

5. LEAVE ENTITLEMENT

5.1. Annual Leave

You will be entitled to **seventeen (17) working days** leave per annum, the first **fifteen (15) days** are deemed statutory leave and the balance will be deemed non-statutory leave. Non-statutory leave will not be carried over into the next leave cycle and unused leave will be forfeited. Statutory leave will be carried forward into the next leave cycle for a maximum period of six (6) months.

Fifteen (15) days must be taken annually, of which **ten (10) days** must be consecutive.

This leave must be taken at a time mutually convenient to both yourself and the Company.

5.2. Sick Leave

In terms of the Basic Conditions of Employment Act 75 of 1997, a maximum of **thirty (30) days paid sick leave** may be granted during each **thirty-six (36) month cycle**. However, during your **first six (6) months** of employment, your entitlement is **one (1) day sick leave** per every **twenty-six (26) days** worked where after the available sick leave balance will be allocated to you.

Candidate Initial W.M. GM Initial BG W.M.

5.3. Family Responsibility Leave

You are entitled to five (5) days family responsibility leave available per calendar year, after the completion of four (4) months service with the Company. Refer to the Absence Management Policy for detailed information.

5.4. Maternity Leave (if applicable)

You are entitled to a statutory maternity leave being a minimum of **four (4)** and maximum of **six (6)** months, where applicable.

Your length of service with the Company will determine any cost to company payments you will receive during the periods of maternity leave. Refer to the Absence Management Policy for detailed information.

6. HOURS OF WORK

You will be required to work **forty-five (45) hours** per week. Your working hours are flexible and will be scheduled by the Business Unit and may include a Saturday which is deemed part of your normal working week. You will be entitled to a thirty (30) minute lunch break as scheduled. Any work performed on a Saturday will be paid at normal rates. Your working hours will be determined by the requirements of the Business Unit to which you are assigned to from time to time and may be amended to suit the operational requirements of the particular Business Unit.

It is a condition of employment that, as and when the need arises, you will be required to work overtime. Payment, or time off in lieu of overtime worked, hours in excess of forty-five (45) working hours per week, will be made in accordance with the Human Capital Payroll and Benefits Management Policy..

7. PENSION FUND / PROVIDENT FUND

It is a condition of service that you join the Company's elected Pension / Provident Fund on your date of appointment. A Company contribution of **7.6%** of your Retirement Funding Income will be deducted from your cost to company value and paid into the Fund. You have the option of contributing between **5%** and **12%** of your Retirement Funding Income salary as an employee contribution. You may make additional voluntary contributions to the Pension Fund / Provident Fund.

8. MEDICAL AID

Immediate membership of one of the selected open schemes is a condition of employment for all employees.

Unless you are dependent on Spouse or Life Partner registered medical scheme, of which proof must be provided at the time of your appointment, or you meet the requirement to belong to the Group Primary Health Insurance (PHI).

Details of these schemes will be supplied on your date of appointment. Please note that you are responsible for the total premium as well as annual increases to the medical aid subscriptions. The medical aid premium will be deemed as follows for tax purposes: Two thirds as an employer contribution (to be deducted from the cost to company figure) and one third as an employee contribution. This is subject to change, pending legislation.

9. GROUP LIFE SCHEME

Membership of the Company's Group Life Scheme is a condition of employment. The employer contributes a fixed percentage on your behalf. Additional cover can be entered into, subject to underwriting rules and benefit structure agreed to with the insurers. The additional premium will be borne by you and deducted monthly.

Candidate Initial W.M GM Initial BG

W.M

10. TERMINATION OF EMPLOYMENT

During your first year of service, the notice period for termination of this contract by either party will be as follows:

- Employed for less than **six (6) months: One (1) week** notice period.
- Employed for more than **six (6) months** but less than **one (1) year: Two (2) weeks'** notice period.

After one (1) completed year of service, your employment is subject to one (1) calendar month's written notice applicable by either party or liability for payment of income by either party in breach of the notice period.

Should the Company not require you to work during this period or any part thereof, you are precluded from taking up any other employment until expiry of the notice period which shall be paid by the Company

11. REGISTER OF DISMISSED EMPLOYEES

In the event of your dismissal from the Company for fraud or dishonesty, your details will be recorded on a centralised database, administered by ITC. Participating Medical Aid Administrators will access this database as part of their recruitment and selection processes.

12. AFFIRMATION OF SATISFACTORY AND COMPANY CHECKS

12.1. You herewith confirm that: -

12.1.1. You have not been found guilty and/or admitted guilt for any act of crime, committed within the last ten (10) years, which could potentially have an adverse effect on the employment relationship, and which includes the company's ability to successfully build and maintain a sustainable trust relationship.

12.1.2. You are not aware, or can reasonably be expected to be aware of any adverse listing or record that could lead to the company questioning your sound judgment to perform your duties and act in the best interest of the company.

12.1.3. You are not aware of any past or current conduct committed by yourself, in your personal and/or professional capacity, which may pose a reputational, financial, or legal risk to the company.

12.1.4. All information (including work experience and qualifications) contained in my Curriculum Vitae (CV/ Resume) is true and valid.

You accept and agree that on signing this affirmation I acknowledge that any discovery by the Company, at any stage of your employment, which may be contrary to this affirmation, will render the contract of employment terminable for reasons related to willful non-disclosure.

13. CONFIDENTIALITY AND NON-DISCLOSURE OF INFORMATION

During your period of service, you will have access to confidential information concerning the Company, the AfroCentric Group, its clients and employees, and its operations. It is a condition of your acceptance of our offer that all such information be treated in confidence by you, both during your employment with the Company and, in the event of your leaving, after departure.

Candidate Initial N.M GM Initial EG

W.M

W.M

13.1. For the purpose of this agreement, "Confidential Information" shall mean information (in any format, electronic or otherwise) which is either personal, non-public, confidential or proprietary in nature, belonging to the AfroCentric Group, its employees, contractors and visitors, which shall include, but not be limited to:

13.1.1. technical, scientific, commercial, financial or market information, know how or trade secrets.

13.1.2. data concerning business relationships, system architecture, system processes

13.1.3. plans, designs, drawings, functional and technical requirements, and specifications.

13.1.4. data and/or other information regarding any medical scheme, member or dependent of a medical scheme, policy holder, insurance policy, registered service provider or practitioner.

13.1.5. any data, information, or personal information of an employee of a business entity that has a business relationship with AfroCentric Group.

13.1.6. all other information in whatever form, whether subject to or protected by, law or statutory laws relating to copyright, patent, trademarks, registered or unregistered or otherwise, of or relating to AfroCentric Group; and

13.1.7. All intellectual property, know-how (not in the public domain); invention (whether or not patented); design, trademark, or Copyright Material (whether or not registered) and any and all company branding and logos.

13.2. "Third Party" – shall mean any person, company, or employee, who does not have the authority to access, view or possess the confidential information.

13.3. You agree:

13.3.1. not to disclose the Confidential Information to any third party for any reason or purpose whatsoever without the prior written consent of AfroCentric; not to utilise, employ, exploit or in any other manner whatsoever use the Confidential Information for any other purposes whatsoever other than the purposes of rendering services to AfroCentric within the course and scope of their employment.

13.3.2. that the unauthorised or unlawful use or disclosure of the Confidential Information may cause irreparable loss, harm and damage to AfroCentric;

13.3.3. that any documentation, records, or data relating to AfroCentric's Confidential Information which comes into the possession of the Employee during the existence of his employment: –

13.3.3.1. shall be deemed to form part of the Confidential Information of the AfroCentric Group.

13.3.3.2. shall be deemed to be the property of the AfroCentric Group.

13.3.3.3. shall not be published or circulated by the Employee, except to the personnel that are employed on AfroCentric Health's Employee Wellness Program.

13.3.3.4. shall not be copied or reproduced by the Employee other than strictly in accordance with requirements of rendering services to the AfroCentric Group and any such copies and reproductions shall be kept separate from other documents and records of the employee.

Candidate Initial W.M. GM Initial BJ

W.M.
BJ

13.3.3.5. shall be surrendered to the company on request, and the Employee shall not retain any extracts there from.

13.4. All the Confidential Information disclosed by the AfroCentric Group to the Employee is:

13.4.1. proprietary to the AfroCentric Group.

13.4.2. does not confer any right of whatever nature in and to such Confidential Information to the Employee; and

13.5. The AfroCentric Group may at any time by way of written notice to the Employee, require him to return any material, pertaining to or relating to Confidential Information and to expunge such information from any word processor, computer or other similar device into which it has been entered or programmed, any may in addition, require the Employee to furnish a written statement to the effect that, upon such return, that the Employee has not retained in his possession, or under his control, either directly or indirectly, any such material.

14. PROCESSING OF PERSONAL INFORMATION

14.1. The Employee, in terms of this Agreement, provides their consent to the AfroCentric Group to process their Personal Information pursuant to their employment with the AfroCentric Group and acknowledges that Personal Information is defined as information relating to any Employee, including but not limited to:

14.1.1. race, sex, gender, sexual orientation, pregnancy, marital status, nationality, ethnic or social origin, colour, age, physical or mental health, well-being, disability, religion, conscience, belief, cultural affiliation, language and birth.

14.1.2. education, medical, financial, criminal or employment history.

14.1.3. names, identity number and/or any other personal identifier, including any number(s), which may uniquely identify the Employee, Employee number, e-mail address, domain name or IP address, physical address, cellular phone number, telephone number or other particular assignment.

14.1.4. blood type, fingerprint or any other biometric information; and

14.1.5. correspondence that is implicitly or expressly of a personal, private, or confidential nature (or further correspondence that would reveal the contents of the original correspondence).

14.2. The Protection of Personal Information Policy is contained on the Company's SharePoint Portal site, and we ask that you read and understand the content of this policy and any matters which may need clarification should be discussed with your direct manager.

15. COMPANY POLICIES AND PROCEDURES

The Company's policies and procedures may be obtained from the SharePoint Portal Site. It is your responsibility to familiarise yourself with these policies, procedures and Company's Code of Conduct during your employment.

By accepting this offer of employment, you agree to comply with these policies and procedures.

Candidate Initial W.M GM Initial BG

[Handwritten signature]

16. EMPLOYMENT DOCUMENTS

The following documents form part of your contract of employment with the Company. You will be bound by the policies, procedures and rules governing these and it is therefore required of you to familiarise yourself accordingly, seeking clarification with your HC Business Partner before signing such document:

- Letter of Appointment (LOA).
- Selected Medical Aid Rules.
- Retirement Fund Rules.
- Code of Conduct.
- Any other documents of which you may be advised during your employment with the Company.

17. OWNERSHIP OF COPYRIGHT

The ownership of Copyright in respect of computer programmes or other material designed by you, or to which design you have contributed to during the course of your employment as well as intellectual property rights vests with the Company in terms of Section 21 of the Copyright Act 57 of 1978. The reproduction of such material in any manner or form of adaptation thereof will infringe copyright.

18. FORMALITIES

This offer of employment is conditional upon you providing us with the following original or certified documents which form an extremely important part of your joining formalities. These documents should be submitted directly to Human Capital Business Partner.

- Original or certified copy of Identity Document.
- Original or certified copies of all Qualifications.
- Pension Fund Beneficiary Nomination Form.
- Proof of your bank account details.
- Medical Aid Application Form / Proof of membership if a dependent on Spouse's or Life Partner Medical Aid.

19. BACKGROUND CHECKS

Your appointment as set out in this employment contract is entirely conditional upon acceptable reference, credit, criminal, background checks and compliance with formalities.

You hereby consent to the Company conducting such checks and confirm that all information disclosed and represented for this purpose is true and correct to enable the Company to derive accurate results from such enquiries for purposes of its decision-making.

To the extent that you have commenced employment and any checks contemplated in this clause confirm that a negative/adverse outcome or an intentional misrepresentation, the Agreement and your employment with the Company shall expire automatically on the date on which the negative/adverse outcome or intentional misrepresentation is discovered by the Company.

Candidate Initial W.M. GM Initial BG W.M.

20. OFFER ACCEPTANCE

Kindly sign and return the copy of this letter, thereby acknowledging and accepting the content as set out herein. Also note that this offer is valid for three (3) days from receipt.

Please initial every page and sign in full on the last page of this document before returning to your HC Business Partner.

We would like to take this opportunity of welcoming you to the Company and hope that your association with us will be a long and happy one.

Yours sincerely,



Barbara Johnson

General Manager: GEMS Operations.5

Medscheme Holdings (Pty) Ltd

Date Signed: 29 April 2024

Candidate Initial W.M. GM Initial BG 

Restraint of Trade (Please tick appropriate block)

I confirm that I am not subject to a restraint of trade and indemnify and hold the AfroCentric Group harmless against any loss or damage arising from any claim by a third party due to a restraint of trade.



OR

I confirm that the provisions of my restraint of trade do not conflict with the provisions of this letter of appointment and indemnify and hold the AfroCentric Group harmless against any loss or damage arising from any claim by a third party due to the restraint of trade.

**Declaration of Interest**

I confirm that I am not involved in, nor do I have **any interest in any company, trust or legal entity** which may / whose business may conflict with the business carried out by the AfroCentric Group or any company within the Afrocentric Health group. In so far as I do hold such interest or am involved in any company, trust or legal entity, such interest or involvement has been disclosed to the organisation and in the event that I acquire such interest or become involved in the future, such involvement shall immediately be disclosed to the organisation.

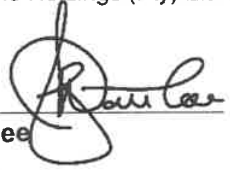


I confirm that the provisions of my **restraint of trade** do not conflict with the provisions of this letter of appointment and indemnify and hold AfroCentric Health harmless against any loss or damage arising from any claim by a third party due to the restraint of trade.



I acknowledge that I have not been **induced to complete this contract** by any representations made to me by any person/s and hereby confirm that I have entered into this contract of my own free will and have no binding restraint of trade obligation which may jeopardise my employment relationship with Medscheme Holdings (Pty) Ltd or any other third party it may be associated with.




W Matthee

Date: 22 April 2024

This signed letter is the official confirmation of your appointment to Medscheme Holdings (Pty) Ltd.

Candidate Initial W.M.

GM Initial BG





Payslip

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Employee Matthee, Wilbur William(Wilbur),Mr.
Identity Number 8909035151087
Employee Number 7074649
Location The Boulevard
Hire Date 01-May-2024
Assignment Number 7074649
Employee Address Street Number: 15
 Street or Name of Farm: Bellevue Street
 Suburb or District: Voorbrug,
 Postal Code: 7100

Employer Name Medscheme Holdings (Pty) Ltd
Grade B4M1
Position Care Coordinator.25
Original Hire Date 01-May-2024
Payroll Medscheme Holdings (Permanent)
Employer Address The Boulevard
 4th Floor
 Searle Street
 Cape Town
 7925



Payroll Information		
Period End Date	Tax Period	Payment Frequency
31-Jul-2025	5	Calendar Month

Tax Information		
Tax Status	Tax Reference No	Pay Date
Normal	0694546243	23-JUL-2025

Summary of Payment			
	Total Earnings	Total Deductions	Total Net Pay
	21,777.04	6,097.75	15,679.29

Earnings		Deductions	
Description	Amount	Description	Amount
Normal Earnings	36,588.81	Sanlam Funeral Cover	52.00
Unpaid Leave Recovery	(13,824.32)	Bonitas EE	1,471.33
Unpaid Leave	(987.45)	Sanlam Pension Fund EE	2,503.57
		UIF Employee	177.12
		PAYE	1,743.73
		Access Tags Loss	150.00

Fringe Benefits and Additional Info		YTD Accumulations & Balances	
Description	Amount	Description	Amount
Medical Aid Bonitas ER	2,942.67	Medical Aid Tax Credit YTD	3,640.00
PHI Disability ER	469.00	Medical Aid ER YTD	14,713.35
Sanlam Pension Fund ER	2,536.95	Medical Aid EE YTD	7,356.65
UIF Employer Contribution	177.12	PAYE YTD	23,491.73
Group Life	258.70	Normal Earnings YTD	181,133.44
Medical Aid Fringe Benefit	2,942.67	Total Taxable Income YTD	161,080.84
Medical Aid Tax Credit	728.00	UIF Employee Contribution YTD	885.60
Monthly Salary Info - CTC	42,796.13		
PHI FBT	469.00		
Retirement Funding Income %	78.00		

Net Pay Distribution			
Payment Method	Bank Branch Code	Account Number	Amount
ACB	679000	10961611474	15,679.29

Message(s)
No Message(s) Found

WVW

UNEMPLOYMENT INSURANCE ACT 63 OF 2001

Employers Declaration of Employees for the month of

U-19
14

Information to be supplied in terms of Section 56(1&3) read with Regulation 13(1&2)

An employer must by the seventh day of each month inform the Commissioner of any changes arising during the previous month regarding the employer's contact details or employees remuneration details including new appointments and termination of service. The employer must forward this form to the Unemployment Insurance Fund at (012) 337-1943/44 or 337-1580/81/82 or submit same at any branch of the UIF which is closest to the employer. The completed form can also be faxed to any of the following numbers: Pta (012) 309 5142/5286; Jhb (011) 497 3293; Dbn (031) 366 2156; Polokwane (015) 290 1670; Mmabatho (018) 384 2658; East Ldn (043) 701 3263; Blftn (051) 447 9353; CT (021) 441 8024; Wtb (013) 656 0233; PE (041) 586 1541; Gmn (011) 873 2219; George (044) 873 2568; Pmb (033) 394 5069; Kimberley (053) 832 7218.

1. EMPLOYER DETAILS

1.1 UIF Employer Reference No 0081266 / 3 Branch No 22032 1.2 PAYE Reference No (If registered with SARS) 7200720425
 1.3 Trading name of business Medscheme Holdings Pty(Ltd) 1.4 Physical Address 37 Conrad Road, Florida North, 1708
 1.5 Address where employees listed in Item 2 work (if different to the address in 1.4) 1.6 Postal address P O Box 1101, Florida North, 1708
 1.7 Co. Reg.No (CIPRO No) 197001501407- - - -
 1.8 E-mail address Natasha.Johnson@med 1.9 Fax No 011 671 6489 1.10 Phone No 011 671 6489 1.11 Authorised person** N Johnson
 scheme.co.za

2. EMPLOYEE DETAILS

2. EMPLOYEE DETAILS																																
A Surname	B Initials	C ID Number (13 Digit bar-coded RSA ID No)													D* Total (Gross) Remuneration paid to Employee Per Month		E* Total Hours Worked during Month	F Commencement date of Employment						G Termination Date						H Reason for Termination (Use Termination Codes as supplied at the bottom of the page)	I Indicate whether contributor or non- contributor (YES OR NO)	J *** If non- Contributor state reason (Use codes at bottom of page)
Matthee	WW	8	9	0	9	0	3	5	1	5	1	0	8	7	42 796	13	162.5	0	1	0	5	2	4	1	2	1	2	2	5	6	Yes	

I, Natasha Johnson, ID No 6909300157084, declare that the above information is true and correct. I understand that it is an offence to make a false statement.

AFROCENTRIC HEALTH
SALARIES DEPARTMENT
P.O. BOX 1101
FLORIDA GLEN, 1708

EMPLOYER SIGNATURE

DATE 19 January 2026

DESCRIPTIONS	
**	If the employer is not resident in the RSA, or is a body corporate not registered in the RSA, an authorised person must carry out the duties of the employer in terms of this Act.
D*	Remuneration means actual basic salary plus payment in kind (Declare actual gross salary) If paid Weekly, convert wages to monthly salary (weekly wages X 52/12)
E*	Total Hours Worked i.e. Actual hours worked during the month (only applicable for employees that are paid per hour) Employers may also submit these details electronically from payrolls or on the UIF's website at www.labour.gov.za Tel. no (012) 337 1680/1700
D	Only Applicable for Commercial Employers

Code	(J) Reason for Non-Contribution ***
1	Temporary employees (less than 24 hours per month)
2	Learners in terms of the Skills Development Act
3	Employees in the National and Provincial spheres of Government
4	Employees who are repatriated at the end of their contract of service
5	Employees who earn commission only
6	No income paid for the payroll period
7	Employees in receipt of an Old Age Pension from the State.
8	Employees who receive a pension payment from Employer
9	Above the ceiling (Old Act)

REASON FOR TERMINATION CODES

2	Deceased	6	Resigned	10	Illness /Medically boarded	14	Business Closed
3	Retired	7	Constructive Dismissal	11	Retrenched/Staff Reduction	15	Death of Domestic Employer
4	Dismissed	8	Insolvency/Liquidation	12	Transfer to another Branch	16	Voluntary Severance Package
5	Contract Expired	9	Maternity/Adoption	13	Absconded		

WMM